

Rubber Rules, 1955

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Union of India - Act

Rubber Rules, 1955

UNION OF INDIA

India

Rubber Rules, 1955

Rule RUBBER-RULES-1955 of 1955

Published on 1 August 1955

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Rubber Rules, 1955

Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3, Page 1613, dated 1.8.1955
1516.

S.R.O. 1662. - In exercise of the powers conferred by Section 25 of the Rubber Act, 1947 (XXIV of 1947), and in supersession of the Rubber (Production and Marketing) Rules, 1947, the Central Government hereby makes the following rules (Published in the Gazette of India (Extraordinary) Part II, Section 3, Page 1613, dated 1st August, 1955), namely

Chapter I

Preliminary

1.

Short title.

- These rules may be called the Rubber Rules, 1955.

2.

Definitions.

- In these rules, unless the context otherwise requires,

(i)

'The Act' means the Rubber Act, 1947 (XXIV of 1947),

(ii)

'Board' means the Rubber Board constituted under Sub-section (1) of Section 4,

(iii)

'Chairman' means the Chairman of the Board appointed under clause (a) of Sub-section (3) of Section 4,

(iiia)

['Executive Director' means the Executive Director of the Board appointed under subsection (1) of section 6A of the Act.]

[Inserted by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

(iv)

'Commissioner' means the Rubber Production Commissioner appointed under Sub-section (1) of Section 6A,

(v)

'Committee' means any committee appointed by the Board under Sub-section (1) of Section 7,

(vi)

'Form' means a form set forth in the First Schedule to these rules.

(vii)

'Large grower' means an owner who is not a 'small grower',

(viii)

a - 'Masterbatche' means a mother stock of a mix of rubber and any one or more compounding ingredients used for the manufacture of rubber goods,

(ix)

'Member' means a member of the Board,

(x)

A "Processing of rubber" means

(a)

conversion of field latex of any rubber plant into technically specified rubbers in solid block or centrifuged latex or latex concentrates or pale latex crepe or any other forms of technically specified rubber; and

(b)

conversion of various forms of sheet rubber or scrap rubber into technically specified rubbers in solid block or estate brown crepe or any other forms of technically specified rubber.

(xi)

'Processor' means a person who undertakes processing of rubber,

(xii)

'Secretary' means the Secretary to the Board appointed under Sub-section 2 of Section 6A,

(xiii)

'Section' means a section of the Act,

(xiv)

'Small grower' means an owner whose estate does not exceed ten hectares in area,

(xv)

'Technically specified rubber' means rubber graded according to technical standards specified by the Bureau of Indian Standards from time to time ,

(xvi)

'Vice-Chairman' means the Vice-Chairman of the Board elected under Sub-section (6) of Section 4, and

(xvii)

'Year' means the year commencing on the first day of April.

Chapter II

Board And Its Constitution

3.

Constitution of the Board and manner of filling vacancies.

- 1. The Board shall consist of the Chairman and twenty seven other members representing the different interests and authorities specified in clauses (b) to (f) of Sub-section 3 of Section 4.

2. Of the two members to represent the State of Tamil Nadu, one shall be nominated by the Government of Tamil Nadu, and the other shall represent the large growers. The person representing the large growers shall be nominated by the Central Government.

3. Of the eight members to represent the State of Kerala., two persons shall be nominated by the Government of Kerala to represent that State. Two persons shall represent the large growers in the State of Kerala, three persons the small growers and one person the Rubber Producers Societies.

4.

Of the ten persons to be nominated by the Central Government one person shall represent small growers from the State of Tripura, one person shall represent small growers from the State of Kerala in addition to the three already provided for, one person shall represent small growers from other non-traditional states like Karnataka, Orissa etc. on a rotation basis and one person shall represent other stake holders.

4. Term of office.

- 1. Save as hereinafter provided, a member shall hold office for such period not exceeding three years as may be specified in the notification in the official Gazette notifying his nomination or election and shall be eligible for re-nomination or re-election, as the case may be.

Provided that a member elected under clause (e) of Sub-section (3) of Section 4 by either House of Parliament shall cease to be a member of the Board, if he ceases to be a member of the House by which he was elected.

2. A member elected or nominated to fill a casual vacancy, or a member nominated by the Central Government on failure of any authority or body mentioned in Sub-section (3) of Section 4 to make a nomination, shall hold office as long as the member whose place he fills would be entitled to hold office, if the vacancy had not occurred or the nomination had not been made, as the case may be.

5.

Resignation.

- A member of the Board or of a Committee may resign his office by a letter addressed to the Secretary, but the resignation shall not take effect until accepted by the Chairman of the Board or of the Committee, as the case may be or until the expiry of thirty days from the date of receipt of resignation by the Secretary, whichever is earlier.

6.

Removal from the Board.

- The Central Government may remove any member from his office.

a. if he becomes bankrupt or insolvent or suspends payment or compounds with his creditors, or

b. if he is convicted of any offense which is punishable under the Indian Penal Code (Act XLV of 1860), and is under the provisions of the Code of Criminal Procedure, 1898 (Act V of 1898) non-bailable or

c. if he is of unsound mind and stands so declared by a competent court, or

d. if he absents himself from two consecutive meetings of the Board without the leave of the Chairman, and in any case from three consecutive meetings, or

e. if he defaults in payment of any dues to the Board, and is so declared by the Board.

7.

Absence from India.

- 1. Before a member of the Board departs from India

(a)

he shall intimate to the Secretary the date of his departure from, and the date of his expected return to India, and

(b)

if he intends to be absent from India for a longer period than six months, he shall tender his resignation.

2. Where a member departs from India under constraint of circumstance, without complying with the provisions of Sub-rule (1), he shall be deemed to have resigned with effect from the date of his such departure from India, unless he intimates to the Secretary within one month from such departure about the date of his departure from and the expected

date of his return to India.

8.

Vice-Chairman.

- 1. The Board shall, in each year, elect a member to be the Vice-Chairman for a period of twelve months commencing from the date of his election or if the election is held before expiry of the term of office of an existing Vice-Chairman, from the date on which such Vice-Chairman would vacate office.

2. In the event of the Vice-Chairman resigning his office as such or ceasing to be a member of the Board, the Board shall at its next meeting elect another member to be the Vice-Chairman for the un-expired portion of the term of office of the Vice-Chairman elected under Sub-rule (1).

Chapter III

Procedure Of Meetings Of Board And Its Committees

9.

Meetings of the Board.

- There shall be not less than two ordinary meetings of the Board in any one year on such dates as the Chairman may think fit and such meetings shall ordinarily be held at the headquarters, but in case where a meeting is decided to be held elsewhere by the Chairman, the reasons for so deciding shall be recorded in writing. The interval between any two ordinary meetings shall not, in any case, be longer than eight months.

10.

Quorum.

- No business shall be transacted, at a meeting of the Board unless there are present at least nine members of the Board and no business shall be transacted at a meeting of a Committee, unless there are present a majority of members constituting the Committee.

10.

-A. Absence from meeting of a Committee.

- Any member of a Committee who absents himself from two consecutive meetings of the Committee without the leave of the Chairman, and in any case from three consecutive meetings, shall cease to be a member of that Committee.

10.

-B. Filling of casual vacancies.

(1)

Any casual vacancy on a Committee shall be filled up by the Board.

(2)

A person appointed to fill a casual vacancy in a Committee shall hold office so long as the member whose place he fills, would have been entitled to hold office, if the vacancy had not occurred.

10.

-C. Presiding over Committee meetings.

- The Chairman shall preside over every meeting of the Committee at which he is present and in his absence, the Vice-Chairman shall preside, if he is a member of the Committee. In the absence of both the Chairman and the Vice-Chairman, the members of the Committees shall elect one from amongst those present to preside at that meeting.

11.

Power to call meetings.

(1)

The Chairman of the Board or the Committee may at any time call a meeting of the Board or the Committee, as the case may be, and shall do so if a requisition for that purpose is presented to him by at least nine members in the case of a meeting of the Board and half the total number of members in the case of a meeting of a Committee.

(2)

At least fourteen clear days before any meeting of the Board and at least ten clear days before in the case of a meeting of a Committee, notice of time and place of the intended meeting, signed by the Secretary, shall be sent to the Government of India in the appropriate Ministry and left at or posted to the address of every member of the Board or the Committee.

Provided that in case of urgency, a special meeting may be summoned at any time by the Chairman who shall inform in advance the Government of India in the appropriate Ministry and the members of the Subject matter for discussion and

the reasons for which he considers it urgent. No ordinary business shall be transacted at such special meetings.

(3)

The Chairman may require any officer of the Board or invite any person or persons to attend any meeting of the Board or the Committee but they shall not have the power to vote.

11.

-A. Agenda.

(1)

At least 10 clear days before any ordinary meeting of the Board and at least 7 clear days before any meeting of a Committee, a list of business to be transacted at the meeting, signed by the Secretary, shall be sent to the Government of India and left at or posted to the address of every member of the Board or of the Committee.

(2)

No business, not included in the list of business, shall be transacted without the permission of the Chairman of the Board or of the committee.

12.

Presiding over meetings.

- The Chairman of the Board shall preside over every meeting of the Board at which he is present and in his absence, the Vice-Chairman shall preside, but when both the Chairman and Vice-Chairman are absent from any meeting, the members present shall elect one of their own members to preside at that meeting.

13.

Business by circulation.

(1)

Any business which is to be transacted by the Board or the Committee may, if the Chairman of the Board or of the Committee so directs, be referred to members by circulation of papers and any resolution or proposal so circulated and approved by the majority of members, who have recorded their views in writing, shall be as effectual and binding as if such resolution or proposal were decided by the majority of members at a meeting;

Provided that at least nine members of the Board or a majority of the members of the Committee, as the case may be, have recorded their view of the resolution or proposal;

Provided further that when a resolution or proposal is referred to members by circulation of papers, any five members of the Board or three members of the Committee, as the case may be, may require that the resolution or proposal be referred to members at a meeting and thereupon such reference shall be made to members at a meeting of the Board or the Committee, as the case may be.

(2)

When any business is referred to members by circulation, a period of not less than 14 clear days in the case of the Board and 10 clear days in the case of a Committee shall be allowed for receipt of replies from members. Such period shall be reckoned from the date on which the notice of business is issued.

(3)

Transaction of business by circulation should be resorted to only in special circumstances or reasons to be recorded in writing. If a resolution or proposal is circulated, the result of the circulation shall be communicated to all the members of the Board or of the committee, as the case may be. A copy of the resolution or proposal circulated and the result of the circulation shall also be communicated to the Government of India.

13.

(A)

. Record of business.

(1)

A record of business transacted at the meetings of the Board or its Committees, shall be maintained by the Board and copies of such record shall be Submitted to the Central Government.

(2)

The record of business transacted as referred to in Sub-rule shall be signed by the Chairman presiding over such meetings.

14.

Voting.

(1)

Except as provided in Rule 13, every question brought before any meeting of the Board or its Committee, shall be decided by a majority of the members present and voting at the meeting before which the matter is brought. No member shall vote by proxy.

(2)

In the case of an equality of votes, the Chairman or the member presiding shall have a second or casting vote.

15.

Appointment of Committees.

(1)

There shall be an Executive Committee consisting of

(a)

The Chairman who shall be the ex-officio Chairman thereof,

(b)

The Vice-Chairman,

(ba)

[the Executive Director;]

[Inserted by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

(c)

The Rubber Production Commissioner and

(d)

Two other members to be elected by the members of the Board from among themselves in such manner as may be laid down by the Board

(2)

(i)

There shall also be a Research and Development Committee consisting of -

(a)

The Chairman who shall be the ex-officio Chairman thereof,

(aa)

[the Executive Director;]

[Inserted by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

(b)

Director of Research of the Board,

(c)

The Rubber Production Commissioner,

(d)

Three other members to be elected by the members of the Board from among themselves in such manner as may be laid down by the Board and

(e)

Three scientists or technologists to represent the Council of Scientific and Industrial Research, the Indian Council of Agricultural Research and the rubber manufacturing industry.

(ii)

It shall be the duty of the Research and Development Committee

(a)

To examine and recommend scientific and technological research projects, schemes and programmes and undertake periodic evaluation and review thereof

(b)

To examine and recommend development and extension project schemes and programmes, in relation to rubber industry and undertake periodic evaluation and review thereof and

(c)

To carry out any duty which may be delegated by the Board from time to time.

(3)

Nothing in this rule shall derogate from the power of the Board to constitute, for such period as may be specified in each individual case, any other Standing Committee or any ad hoc committee for any of the purposes mentioned in Section 8 or Section 8A. The Chairman of the Board shall be ex-officio Chairman of all Committees constituted under this rule.

16.

Travelling and other allowances to members of the Board and its Committees.

(1)

A member of the Board or of any Committee other than a government servant, shall be entitled to draw, in respect of any journey performed by him for the purpose of attending a meeting of the Board or of a duly constituted Committee thereof or for the purpose of discharging any duty assigned to him by the Board or the Committee concerned, traveling allowance and daily allowance at the highest rates admissible to government servants of the first grade under the rules and orders made by the Central Government and for the time being in force.

(2)

In the case of any journey performed by an official of the Central or the State Government specially nominated or co-opted by the competent authority to serve on any ad hoc committee or any other committee or to attend to any other business of the Board, the traveling and daily allowances admissible to him shall be payable by the Board at the rates admissible to him under the rules of the government under which he is for the time being employed.

(3)

No traveling allowance or daily allowance shall be allowed to a member of the Board or of any Committee unless he certifies that he has not drawn any traveling or daily allowance from any other source in respect of the journey and halt for which the claim is made.

(4)

Traveling allowance shall be payable from the usual place of residence of a member of the Board or any Committee to the place of the meeting or the place where he has gone to attend to any business of the Board and back to his place of residence;

Provided that when the journey commences from or the return journey terminates at any place other than his usual place or residence the traveling allowance shall be limited to the amount that would have been payable had the journey commenced from or terminated at the usual place of residence or to the amount payable in respect of the actual journey undertaken, whichever is less;

Provided further that in special circumstances and with the previous approval of the Central Government, the Chairman may grant traveling allowance from places other than the usual place of residence of a member.

(5)

Conveyance allowances.-No conveyance allowance for attending meetings of the Board or any Committee or for attending to any other business of the Board, shall be paid to those members of the Board or Committee who draw traveling or daily allowance.

Provided that a member of the Board or any Committee who is resident at a place where the meeting of the Board or the committee is held or where any other business of the Board is transacted, may be paid the actual expenditure incurred on conveyance by him subject to a maximum of Rs. 10 per day.]

17.

Revision.

(1)

The Central Government may, for reasons to be recorded in writing, review any decision of the Board or its Committees and pass such order in the matter as it thinks fit.

(2)

A copy of every order passed under Sub-rule (1) shall be sent to the Board or the Committee, as the case may be, by the Central Government.

(3)

On receipt of a copy of the order as aforesaid, the Board or the Committee, as the case may be, may make a representation to the Central Government against the said order and the Central Government may after considering the said representation, either cancel, modify or confirm the order passed by it under Sub-rule (1) or take such other action in respect of the matter as may, in the opinion of the Central Government, be just or expedient, having regard to all the circumstance of the case.

Chapter IV

Board And Its Establishment

18.

Salaries and allowances.

- All expenditure on account of the salaries, allowances, pension, leave and other contributions, if any, of the Chairman and other officers appointed by the Central Government under Section 6 and 6A shall be met from the funds of the Board.

19.

Boards establishment.

- The Board may from time to time Subject to the availability of specific provision in the budget estimate of the Board as sanctioned by the Central Government, sanction such establishment as may, in its opinion, be necessary for the efficient performance of its functions.

Provided that no post shall be created without the previous sanction of the Central Government, if the maximum salary of the post exceeds Rs.39,100/- in the Pay Band 3 with the grade pay Rs. 5400/- per month in the case of technical posts and Rs. 39,100/- in the Pay Band 3 with the grade pay Rs. 6,600/- per month in the case of non-technical posts, Subject to observance of the ban orders for creation of posts issued by the Government from time to time;

Provided further that in case of exigencies, temporary posts which would need to be created in the interest of the Board and the maximum pay of which does not exceed Rs. 39,100/- in the Pay Band 3 with the grade pay Rs. 5400/- per man sum in the case of technical posts and Rs.39,100/- in the Pay Band 3 with the grade pay Rs. 6,600/- per month in the case of non-technical posts, subject to observance of the ban orders for creation of posts issued by the Government from time to time, may be created by the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

, Subject to certification by the Board, Subsequently;

Provided also further that the confirmation to a key post of a direct recruitee who has been identified to that particular post shall be made only with the prior approval of the Central Government.

20.

[Finling up of permanent vacancies by direct recruitment.

[Subs. by G.S.R. 206, dated 7th February, 1962]

- All vacancies in class I and II posts and in any other posts classified as technical posts shall be advertised and all vacancies in other posts shall be notified to the Regional Employment Exchanges, unless the Chairman for valid reasons to be recorded decides otherwise. Appointments shall be made from among the applicants or the candidates recommended by the Employment Exchanges, as the case may be.]

21.

Omitted

22.

Filling up of temporary vacancies in sanctioned posts.

- Temporary vacancies in respect of sanctioned posts, which are not covered by Section 6A shall be filled up by the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

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23.

Posting and transfer.

- Posting and transfers of all officers and other members of the staff of the Board shall be made by the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

who may delegate this power to such extent as he deems fit, to the [Secretary]

[Substituted 'Commissioner' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

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24.

[Pay and allowances of borrowed officers.

[Inserted by G.S.R. 797, dated 13th September, 1958]

- The pay and allowances including traveling allowances of government officers lent to the Board, other than the officers lent for appointment under Section 6A, shall be such as may be determined by the Central Government.]

[24-A. Grant of advances for building etc., of houses.

[Inserted by G.S.R. 797, dated 13th September, 1958]

- (i) An advance for building a new house (including purchase of land for the purpose) or for purchase of ready built house or for enlarging living accommodation of an existing house owned by an officer (other than one appointed by the Central Government) or other employee of the Board may be granted to such officer or employee at such rates and on such conditions as may be determined by the Board in conformity with the rules of the Central Government for the time being in force, regulating the grant of advances for building etc., of houses to Central Government Servants.]

(ii)

The advance specified in (i) above may be granted for the same purpose to an officer of the Board appointed by the Central Government also, at such rates and on such conditions as may be admissible to officers holding comparable posts under the Central Government in accordance with the rules of the Central government for the time being in force.

(iii)

The grant of advance is Subject to the availability of funds under the head 'Advance recoverable bearing interest.

(iv)

The Board, the Executive Committee and the Chairman shall have power to grant advances up to the amounts specified below:-

Board Over Rs. 20,000

Executive Committee ... Up to Rs. 20,000

Chairman ... Up to Rs. 5,000]

24.

-B. Grant of advances for the purchase of motor car, motor cycle or bicycle.

- An advance for the purchase of motor car, motor cycle or bicycle may be granted to an officer or employee who is in permanent employment of the Board at such rates and conditions as may be admissible to an officer or employee holding a comparable post under the Central Government in accordance with the rules of the Central Government for the time being in force. Subject to the concurrence of the Central Government, permanent government servants on deputation to the Board will also be eligible to the grant of such advances from the Board in accordance with the aforesaid rules. The grant of advances is Subject to the availability of funds under the head 'Advances recoverable bearing interest'.

25.

Omitted

26.

Sending persons abroad.

- The Board shall not send any officer of the Board or any member of the Board to places outside India without the previous sanction of the Central Government.

Chapter V

Powers Of The Board And The Chairman

27.

Powers of the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

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(1)

The [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

shall be responsible for the proper functioning of the Board and the implementation of its decisions and the discharge of its duties under the Act.

(2)

The [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

shall be the principal executive officer of the Board and shall exercise administrative control over all departments and

officers of the Board.

(3)
Subject to such delegations as may be made by the [Executive Director]
[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]
to such other officers as may be appointed for the purpose of this rule, the [Executive Director]
[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]
shall

(a)
cause all important papers and matters to be presented to the Board as early as practicable
(b)
issue directions as to the method of carrying out the decisions of the Board
(c)
grant, or Subject to resolution by the Board, authorise some other person to grant, receipts on behalf of the Board for all moneys received under the Act
(d)
maintain or cause to be maintained an account of the receipts and expenditure of the Board and
(e)
present annual draft report of the working of the Board to the Board for approval and Submit the report in the form approved by the Board to the Central Government.

(4)
The [Executive Director]
[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]
shall have power

(i)
Omitted
(ii)
to issue general or special licences under Section 14 and extend the period of validity of such special licences suspend or revoke such licences or restore any licences so suspended.
(iii)
Omitted
(iv)
to call for information, documents and returns and to inspect or cause to be inspected, accounts and places of storage or of business, as required or provided by the Act or these rules.
(v)
to require the Board or any Committee to defer taking action, pending a reference to the Central Government on any decision taken by the Board or the Committee.

(5)
The [Executive Director]
[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]
may sanction an expenditure on contingencies, supplies and services and purchase of articles required for the working of the office of the Board and required for the execution of measures in furtherance of the object of the Act, Subject to the necessary provisions in the budget.

(6)
The [Executive Director]
[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]
may, by order in writing, delegate any of his powers under clauses(i) to (iv) of Sub-rule 4 and Sub-rule 5 to any other officers of the Board.

(7)
Where a matter has to be disposed of by the Board or a Committee and a decision cannot wait till a meeting of the Board or the appropriate Committee, as the case may be, is held, or till completion of circulation of papers, the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

may take a decision himself and after taking decision thereon keep the members of the Board or the Committee informed of the decision so taken.

27A.

[

[Inserted by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

The Executive Director shall be an officer in the rank of Joint Secretary to the Government of India.]

28.

Delegation of powers.

(1)

The Board shall have power to delegate to a Committee such power as it deems fit.

(2)

Every Committee appointed by the Board shall exercise the powers conferred on it by or under the Act or these rules, Subject to such instructions, direction or limitations, if any, as may be defined by resolution of the Board and all acts of all Committees shall be Subject to the control of the Board which may cancel, suspend or modify, as it thinks fit, any such act.

29.

Restriction on delegation of powers.

(1)

The Board shall not delegate any administrative or financial power to any Committee, other than the Executive Committee

(2)

The Board shall not delegate any of the following powers to the Executive Committee

(a)

the power to sanction expenditure in excess of Rs.10,000/- in respect of any single item

(b)

the power to adopt the Budget Estimates of the Board on its behalf

(c)

the power to sanction expenditure incurred outside India in excess of Rs. 5,000/- in respect of any single item

(d)

the power to re-appropriate estimated savings in excess of Rs. 2,500/- in the case of any single item

(e)

the power to write off losses in excess of Rs.500/- in any single case.

30.

[Power to incur expenditure from General Fund.]

[Substituted by G.S.R. 163, dated 17th March, 1958]

(1)

Subject to the provisions of the Act and these rules, the Board may incur such expenditure from the Rubber Development Fund, as it may think fit, and write off losses up to a maximum of Rs.10,000/- for losses due to theft, fraud and negligence and Rs.20,000/- for other cases in any single case and may delegate such powers to the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

and other officers of the Board to such extent as it deems fit;

Provided that, save with the sanction of the Central Government, no expenditure shall be incurred which is in excess of the sanctioned budget allotment.

(2)

Re-appropriation within a head of expenditure be made by the Board and, Subject to clause (d) of Sub-rule (2) of Rule 29, the Board may delegate its powers in this behalf to the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

or Secretary.

(3)

Re-appropriations between heads of expenditure (other than those relating to Administration, Research and Development) shall not be made, save with the previous sanction of the Central Government.

(4)

The Board shall not incur expenditure outside India in excess of Rs.10,000/- on any single item without the previous sanction of the Central Government

[30-A. Assistance from Pool Fund.-

[Instrtd by G.S.R. 163, dated 17th March, 1958]

(1) Subject to the provisions of the Act, the Board may incur such expenditure from the Pool Fund, as it may think fit, for assisting any small grower or any class of small growers 3[(i)] in carrying out replanting in his or their estates with high yielding planting materials and maintaining the areas so replanted up to the stage of maturity (tapping) 3[and (ii) for planting new areas with rubber]. Such assistance may take the form of-]

(a)

lump sum grant in one or more installments to meet the cost of one or more items of work either wholly or partly; or

(b)

supply of materials either free of cost or at subsidized rates: or

(c)

reimbursement, wholly or partly, of the cost incurred on any item of work or;

(d)

lending of sprayers or dusters on payment of rent or free of rent.

(e)

[Loan or loans for replanting existing areas or for planting of new areas with high yielding planting material, in such amounts as are sanctioned by the Board with the approval of the Central Government.]

[Instrtd by G.S.R. 672, dated 8th June, 1960]

(2)

The Board may write off losses up to a maximum of Rs. 1,000 in any single case.

(3)

The Board may delegate the powers under sub-rules (1) and (2) to the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

.]

31.

Borrowing powers.

- The Board may with the previous sanction of the Central Government borrow, on the security of the Rubber Development Fund or any other of its assets, for meeting its expenses or for any other purposes referred to in Section 8 of the Act;

Provided that no loan shall be taken which is repayable later than six months from the date of the loan.

32.

Contracts.

(1)

The Board may enter into contracts provided that every contract which involves an expenditure in excess of 20 lakh rupees, shall require the previous sanction of the Central Government.

(2)

Subject to the provision of Sub-rule (1), the Board may delegate to the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

such power for entering into contracts on its behalf as it may think fit.

(3)

Contracts shall not be binding on the Board, unless they are executed by the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

, or an officer of the Board duly authorized by the Chairman.

(4)

[Neither the [Executive Director]

[Instrtd by S.R.O. 549, dated 14th February, 1957]

nor any officer of the Board nor any member of the Board shall be liable for any assurance or contract made by the Board but any liability arising out of such assurance or contract shall be discharged from the moneys at the disposal of the Board.]

33.

Power to call information and documents.

- The Board may serve a notice upon

(a)

The owner of any estate requiring him to furnish within such period, not being less than 30 days as may be specified in the notice, such information and documents relating to the area planted with rubber or to the production including the cost of production and sale of rubber produced on the estate or to the ownership of the estate or to any other matter as it may deem necessary to enable it to discharge its duties under the Act.

(b)

Any licensed dealer or any manufacturer or any processor or any other person, if the Board has reason to believe that such person has any rubber in his possession, requiring him to furnish within such period, not being less than 30 days as may be specified in the notice, such information and documents relating to the stocks of rubber held and sale of rubber or to any other matter as it may deem necessary to enable it to discharge its duties under the Act.

(c)

[Any person required to furnish any information or to produce a document under clause (a) or (b) shall furnish such information or produce such document, or show cause why it could not be furnished or produced within the time specified in the notice.]

[Instrtd by S.R.O. 549, dated 14th February, 1957]

(d)

The Board may authorise any officer to call for production of information and records from an owner of an estate, or any licensed dealer or any manufacturer or any processor or any other person if he has reason to believe that such person has any rubber in his possession.

[***]

[Omitted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[33A to 33D.

[Omitted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[***]

[33-A.-

[Instrtd by S.R.O. 549, dated 14th February, 1957]

(1) If any owner of an estate fails to furnish in due time the return referred to in Sub-section (4) of Section 12 or furnishes a return which the Board has reason to believe is incorrect or defective, the Board may serve a notice on the owner calling upon him to produce all or any of his accounting relating to production of rubber on his estates and to prove]

(a) if no return has been submitted, that there was no production

(b) if a return has been submitted, the correctness and completeness of the return.

The Board shall, after checking the accounts and after making such further enquiry as it deems fit, assess the amount payable under Sub-section (2) of Section 12,

(2) The same procedure shall be followed if for any reason the whole or any part of the production in an estate has escaped assessment in any year.

[The Board may delegate its powers under this rule to the Secretary]

[Instrtd by G.S.R. 29, dated 28th December, 1961.]

Director (Licensing and Excise Duty) and to such other officers of the Board as it deems fit.

[33-B.

[Instrtd by S.O. 163, dated 13th January, 1961.]

(1) If any manufacturer fails to furnish in due time the returns prescribed by the Board in pursuance of clause (b) (ii) of Sub-section, (4) of Section 12 of the Act and Rule 33(e) or furnishes a return which the Board has reason to believe to be incorrect or defective, the Board may serve a notice on the manufacturer calling upon him to produce all or any of his accounts relating to the purchase, acquisition or use of rubber and to prove]

(a) if no return has been Submitted, that there has been no purchase or acquisition of rubber or that no rubber has been used in the manufacture

(b) if a return has been Submitted, the correctness of the return.

(2) The Board shall, after checking the accounts and after making such further enquiry as it deems fit, either through its own officers or through officers of the State Government or Central Government or such other authorities, assess the amount of excise duty payable by such manufacturer.

(3) The same procedure shall be followed if for any reason the whole or any part of the rubber acquired by a manufacturer has escaped assessment during the period specified in rule 33(e).

(4) The Board may delegate its powers under this rule to the Director (Licensing and Excise Duty) and such other officers of the Board as it deems fit.

33-C. The manufacturer, who has purchased or otherwise acquired rubber from another manufacturer under a licence issued by the Board under Rule 40-A, shall not be liable to pay any excise duty on the quantity of rubber so purchased or otherwise acquired, if it had been assessed and collected.

33-D. (1) Every manufacture shall pay to the Board the duty of excise at such rate, as may be notified from time to time, on the quantity of the rubber acquired by him during the period specified in rule 33(e) along with the return, not later than thirty days after the period to which the return relates to either in cash at the Board's office at Kottayam or by money order or by bank draft or by any mode of payment through bank, payable at Kottayam to the Director (Licensing and Excise Duty) Rubber Board evidenced by proof of payment.

(2) If any manufacturer fails to pay the amount due under sub-rule (1) above within the time prescribed he shall pay interest at such rate as may be fixed by the Board not exceeding two percent per month from the date of default till the date of remittance either in cash at the Board's office at Kottayam or by money order or by the bank draft or through any mode payment through bank payable at Kottayam to the Director (Licensing and Excise Duty) Rubber Board.

(3) If a manufacturer fails to pay the amount within the date prescribed in sub-rule (1), the Board may take steps to report the fact to the Central Government or the State Government concerned for recovery of the outstanding amount with interest and cost of collection, as an arrear of land revenue.

33E.

Powers of Board to remit or abandon claims to excise duty.

(1)

It shall be lawful for the Board to remit or abandon claims to excise duty on rubber up to one thousand rupees in any single case of assessment;

Provided that the arrears of excise duty, pending more than a year, have been certified to be irrecoverable by the revenue authorities of the State concerned; Provided further that

(a)

petty amounts up to fifty rupees in any single case of assessment, may be written off without any certificate of irrecoverability as mentioned in the preceding provision Subject to the condition that such amount is certified to be irrecoverable by the Secretary [***]

[Omitted 'or any other officer of the Board, to whom the powers under Rule 33B have been delegated' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

(b)

where petty amounts up to fifty rupees cannot be certified as irrecoverable under clause (a), a certificate of recovery shall be issued by the Board to the revenue authorities of the State concerned and the recovery may be written off by the Board if the amounts are not recovered by the revenue authorities within a reasonable time.

(2)

The Board's powers under Sub-rule (1) to remit to abandon claims to excise duty, shall be Subject to the provisions of Rule 10 of the Delegation of Financial Powers Rules, 1958.

(3)

The Board may delegate its powers under this rule to the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

to such extent as it deems fit.

Chapter VI

Finance And Accounts Of The Board

34.

Budget estimate.

(1)

The Board shall in each year prepare a budget for the Rubber Development Fund for the ensuing financial year and shall Submit it for the sanction of the Central Government on or before such date as may be appointed by that Government.

(2)

The budget shall be in such form as the Central Government may direct and shall include a statement of

(i)

estimated opening balance

(ii)

estimated receipts by way of grant from the Central Government under Sub-section (7) of Section 12

(iii)

Proposed expenditure classified under the following heads or such other heads as the Central Government may direct -

(a)

Administration

(b)

Works

(c)

Research

(d)

Labour welfare

(e)

Development department

(f)

Replanting Subsidy

(g)

Advances to employees.

(3)

The proposed expenditure under each head shall be further classified under the following Sub-heads

(i)

Pay of officers

(ii)

Pay of establishment

(iii)

Allowances, honoraria, etc.

(iv)

Other charges, contingencies, etc.

(4)

Supplementary estimates of expenditure shall be Submitted for the sanction of the Central Government in such form and on such dates as may be directed by it.

35.

Accounts of the Board.

- The Board shall maintain separate accounts for the Rubber Development Fund.

(1)

Rubber development Fund - In respect of Rubber Development Fund for which budget estimates are prepared, the Board shall maintain accounts of receipts and expenditure relating to each financial year.

(2)

The audited statement of receipts and expenditure for each period together with the auditor's reports thereon shall be Submitted to the Central Government.

(3)

After the close of each year the statement shall be placed before the Board.

(4)

Omitted

(5)

[***]

[Omitted 'The grants received from the Central Government under Sub-section (7) of Section 12 shall be deemed as receipts of the Board.' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

(6)

The opening balance, if any, shall also be stated as such separately.

(7)

Expenditure incurred in the year shall be shown under separate heads and Sub-heads.

(8)

The closing balance of the year shall be shown at the foot of the accounts on the expenditure side.

36.

Pool Fund

(1)

A special fund known as the Pool Fund shall be created under sub-section (2) of Section 9. In respect of the Pool Fund for which budget estimates are prepared, the Board shall maintain accounts of receipts and expenditure relating to each financial year.

(2)

The audit report on the accounts of the Pool fund together with the explanatory notes shall be put up the Board.

37.

Deposit of funds of the Board in banks and the investments of such funds.

(1)

Money required for current expenditure of the Board, with the exception of petty cash and surplus moneys shall be kept in a current account in the State Bank of India or such other bank as the Central Government may approve.

(2)

Any funds not required for current expenditure may be placed in deposit account with the Central Government in the Public Account or invested in short-term deposits with such banks as may be approved by the Central Government for the purpose.

(3)

The placing of money in deposit with the Central Government require the sanction of the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

or any officer authorized by the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

.

(4)

Payment by or on behalf of the Board shall be made in cash or cheque drawn against the current account of the Board.

(5)

Such cheques and all orders for making deposits or investments or withdrawals of deposits or investments or for the disposal in any other manner of the funds of the Board shall be signed by the Director Finance or any other officer of the Board, duly authorised by the Board in this behalf, and countersigned by the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

or any other officer authorized by the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

.

Provided that where the amount covered by any such cheque or order does not exceed Rs.5000/- such cheque or order may be countersigned by the Secretary or in his absence by any other officer of the Board duly authorised by the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

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Chapter VII

Miscellaneous

38.

Registration of Rubber Estates.-

(1)

Every person subject to the provisions of Section 10 shall make in duplicate an application to the Board in Form A, for registration as an owner in respect of each estate owned by him.

(2)

The Board may call for any additional information which it may deem necessary for the purpose of registering such person as the registered owner in respect of each estate owned by him.

(3)

The Board shall allot a registration number to every estate in respect of which an application has been made in Form A and shall return the duplicate copy to the applicant with the registration number duly filled in.

39.

Licence to deal in rubber.

(1)

Every person other than processor who wants a special license to purchase, sell or otherwise deal in rubber [(including imported natural rubber)]

[Inserted by Notification No. G.S.R. 897(E), dated 12.12.2001 (w.e.f. 1.8.1955)]

shall [apply online for]

[Substituted 'apply for' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

a license in Form B.

The Board, if it is satisfied with regard to the suitability of the applicant, may issue a licence in [Form C by online]

[Substituted 'Form C' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

.

(2)

The licences shall be numbered and shall not be transferable.

39A.

Licence to acquire rubber for processing and for selling rubber so acquired.

(1)

Every person who wants a special licence to acquire rubber [(including imported natural rubber)]

[Inserted by Notification No. G.S.R. 897(E), dated 12.12.2001 (w.e.f. 1.8.1955)]

for processing or to sell the rubber so acquired after processing or otherwise shall [apply online to]

[Substituted 'apply to' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

the Board for a licence in Form B1.

(2)

Every such application shall be accompanied by a project report in cases where processing units are yet to be established.

(3)

The Board may issue a special [licence online under]

[Substituted 'licence under' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

this rule in Form C1, if it is satisfied with regard to the following matter, namely -

(i)

suitability of the applicant

(ii)

suitability of the site selected

(iii)

availability of raw materials

(iv)

availability of technical know-how

(v)

arrangements made for technical specification

(vi)

economic feasibility.

(4)

The special licence issued under this rule shall be numbered and shall not be transferable.

(5)

No application for a special licence under this rule made by a person who was processing rubber before the commencement of the Rubber (Amendment) Rule 1974 shall be rejected by the Board except for special reason to be recorded in writing.

40.

Licence to acquire rubber.

- Any manufacturer desiring a special licence to purchase or otherwise acquire rubber [(including imported natural rubber)]

[Inserted by Notification No. G.S.R. 897(E), dated 12.12.2001 (w.e.f. 1.8.1955)]

shall [apply online to the Board]

[Substituted 'apply to the Board' by Notification No. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

in Form D. If the Board approves, a licence may be issued in [Form E by online]

[Substituted 'Form E' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[40-A.

[Instated by S.R.O. 2824, dated 30th August, 1957]

Any manufacturer holding a special licence in Form E and desiring in an emergency to sell rubber acquired by him under that licence to another manufacturer holding a special licence in Form E, shall [apply online to the Board] in Form 'D1'. If the Board approves, a licence may be issued in [Form E1 by online]

[Substituted 'Form E1' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

for each such transaction.]

41.

Licence of plant rubber.

(1)

Any person desiring to undertake planting or replanting of rubber shall apply to the Board in Form F.

(2)

The Board shall consider all applications and may grant to such applicants as it thinks fit licences in Form G for planting and in Form I for replanting in respect as it thinks fit licences in Form G for planting and in Form I for replanting in respect of the whole or any part of the area asked for or may refuse to grant a licence.

(3)

[The licence specifying the area of planting or replanting shall be issued for a calendar year or part thereof.]

[Substituted by S.R.O. 2905, dated 5th September, 1957.]

(4)

Any right of planting of rubber granted by a licence shall be deemed to be attached to such land and shall not be transferable apart from the land on which such right is permitted to be exercised.

(5)

Every holder of a licence shall, at such times as the Board may from time to time require, furnish or the Board a return giving the areas newly planted or replanted during that period in pursuance of such licence together with such other particulars as may be required for the purpose of the Act.

42.

Power to revoke or cancel licence.

- The Board may, at any time, after affording a reasonable opportunity to the licensee to be heard, revoke or cancel any licence if it is satisfied that the licensee obtained the licence by misrepresentation of facts or fraud or if he contravenes any of the provisions of the Act or rule made under the Act or conditions of the licence.

43.

Monthly and annual returns.

(1)

[Every small grower, when required to do so, and every large grower shall [submit online to the Board]

[Substituted by G.S.R. 620, dated 15th July, 1958.]

a true and correct monthly return in Forms H&L, giving the particulars of rubber stock held, produced or disposed of by him, and an annual return in Form H1, giving the particulars of total area, area under production of rubber, manuring, plant protection and labour employed as required therein.]

(2)

[Every licenced dealer shall [submit online to the Board]

[Substituted by G.S.R. 620, dated 15th July, 1958.]

, a true and correct monthly return in Forms H2 and L, giving the particulars of rubber stock held, acquired or disposed of by him.]

(3)

Every manufacturer shall [submit online to the Board]

[Substituted 'Submit to the Board' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

, a true and correct monthly return in Forms K and L, giving the particulars of rubber stock acquired, consumed or disposed of by him, and an annual return in Form K1, giving the particulars of consumption of various kinds of rubber in relation to end products, as required therein.

(4)

Every processor whether he holds a valid licence issued under rule 39A or not, shall [submit online to the Board]

[Substituted 'Submit to the Board' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

, a true and correct monthly return in Forms H3 and L1, giving the particulars of rubber stock held, used out of own production or acquired for processing and disposed of by him as required therein.

[43-A.

[Instituted by G.S.R. 331, dated 14th March, 1960.]

Where the Act or these rules required any person to [submit online any statement] or return, that person shall submit a 'nil' statement or return for any period for which there are no particulars to be furnished in the statement or return.]

43B.

[***]

[Omitted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

43-B. Declaration regarding Inter State transport of rubber.- (1) No person shall transport or cause to be transported, rubber from one state or union territory to another state or union territory without a valid declaration in the prescribed form issued by the Board to such person. The prescribed declaration form so issued by the Board to a person shall not be used in the name of any person other than the person to whom it is issued. The form to be used for the said declaration by a registered owner of an estate shall be Form N1, that to be used by a dealer licensed under rule 39A shall be Form N2, that to be used by a processor licenced under rule 39A shall be Form N3 and that to be used by a manufacturer licensed under rule 40 shall be Form N4. The person to whom a declaration in the prescribed form is issued by the Board shall adhere strictly to the instructions given in the notes specified in the said forms.

(2) On demand by any officer of the Board authorized in that behalf by the[Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

of the Board, or any officer of the Central or State Governments authorized in that behalf by that Government, the consignor, the person transporting rubber and the consignee shall produce the declaration.

44.

Registers.

- The Board shall maintain the following registers, namely,

(a)

a register of estates

(b)

a register of dealers licensed

(c)

a register of manufactures to whom licences for purchase of rubber have been issued

(d)

a register of licenced processors and other processors.

45.

[

[Substituted by Notification No. G.S.R. 18(E), dated 8.1.2018]

The Board shall levy fees at the following rates for a year or part of a year for issuing licences under these rules to,

(a)

manufacturer for purchase of rubber exceeding 100 kilograms, but not exceeding 4 tonnes - Rs. 500/- per licence;

(b)

manufacturer for purchase of rubber exceeding 4 tonnes - Rs. 1000/- per licence;

(c)

dealer Rs. 1000/- per licence;

(d)

processor for acquisition of rubber for processing and sale of rubber so acquired, Rs. 1000/- per licence; and

(e)

manufacturer holding a valid licence in form E for selling rubber to another manufacturer holding a valid licence in Form E in emergencies, Rs. 500/- per licence].

46.

Appeals.

- For appeals to the Central Government against any order of the Board, under Section 23 a fee of Rs. 25 per appeal shall be levied.

47.

Powers and duties of the Commissioner.

- The Commissioner shall be in charge of development programmes of the Board. Besides advising the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

in technical and development matters and exercising powers that may be delegated to him by the [Executive Director]

[Substituted 'Chairman' by Notification No. G.S.R. 668 (E), dated 4.7.2016 (w.e.f. 1.8.1955).]

, he shall make technical advice available to the rubber growers.

[48. Grading and marketing of rubber. - Every processor and every person referred to in Rule 39A shall grade and market his products in conformity with such standards as are specified by the Bureau of Indian Standards from time to time.]

[Inserted by Notification No. G.S.R. 897(E), dated 12.12.2001 (w.e.f. 1.8.1955)]

The First Schedule

[See Rule 2 (vi)]

Form A

[See Rule 38 (3)]

The Rubber Board

Application for registration of estate

To be filled up in duplicate and sent to the Secretary, Rubber Board, Kottayam, Travancore-Cochin State.

The application should reach the Secretary on or before.....

(Please Type or Write in Block Letters)

Note. - Separate applications should be submitted in respect of estates situated in different Taluks or Districts.

Reg. No. (To be filled up by the Board)

1.

Name of Estate.

2.

Location of Estate:-

(a)

State.

(b)

District.

(c)

Taluk.

(d)

Village or Pakuthy.

(e)

Post Office.

(f)

Nearest Telegraph Office.

3.

Name and address of Proprietor, Lessee or person appropriating the produce. (The particulars of the person having actual possession of the Estate should be given here).

4.

Name and address of Manager or Agent.

5.

Name and address of person to whom correspondence regarding this Estate should be addressed.

6.

(a)

Nature of title of the applicant. (State whether title is claimed on deed or inheritance, prescription, etc.).

(b)

If title is claimed on lease deed, state (i) the No., the date of registration the date of expiry, and the name of the registry office where the document was registered.

(ii)

Name and address of the person who executed the lease deed.

7.

The No. and date of the licence issued by the Rubber Board under which the planting was carried out.

8.

Total are planted with rubber...acres.

Year or Years of Planting

Exclusively planted in rubber

(acres) U.S. C.S B.G.

No. of trees in exclusively planted

area U.S. B.G. C.S

Rubber inter-planted with other

crop (acres) U.S. B.G. C.S.

No. of rubber trees in interplanted

area U.S. B.G. C.S.

Total.

9.

Is planted area surveyed or has the owner proof of acreage under rubber?

10.

If planted area is not surveyed separately, give survey No.or Nos. in which plants exist.

I.....Proprietor, Lessee, Occupier, Duly Accredited Agent of.....Estate hereby declare that the statements contained in this return are true and accurate and that the estate books are available to support the figures given in this application.

Dated at.....this day of.....

Signature of witness.

Name and address of witness

Signature,

Superintendent, Proprietor,

Lessee, Occupier, Duly

Accredited Agent.

U.S.-Unselected (Ordinary) seedlings.

C.S.-Clonal seedlings.

B.C.-Bud-grafts.

Form B

[See Rule 39 (1)]

The Rubber Board

Application for the issue of a Special licence to deal in rubber

1.

Name of the firm (in Block Letters).

2.

Address in full of the place of business.

3.

Full name, age and permanent address of Proprietor, Proprietors or partners of the firm.

4.

(a)

Have you been a licensed rubber dealer under the Rubber Board?

(b)

If so, please quote your Dealer's Reg. No.

5.

From what date have you been dealing in rubber?

6.

Are you doing or proposing to do any business other than dealing in rubber?

7.

Invested capital or financial standing of the firm.

8.

Is there on the staff any person who knows grading or packing of raw rubber? If so, the names of such persons and their experience.

9.

What was the total quantity of rubber purchased and sold by you during each of the previous five years?

Rubber Purchased (in lbs.) Rubber Sold (in lbs.)

(If accurate figures are not available approximate figures may be given).

I declare that the statements made above are true to the best of my knowledge and belief.

Date.....

Signature of applicant.

[This application should be recommended by not less than two persons falling under any of the following categories:-

(1)

Owners of rubber estates of not less than 15 acres each;

(2)

Registered dealers;

(3)

Registered manufacturers;]

[Substituted by G.S.R. 620, dated 15th July, 1958.]

1.

Signature.

[Name and address of the owner, dealer or manufacturer. Register Number of Estate, or Dealer or Manufacturer.]

[Substituted by G.S.R. 620, dated 15th July, 1958.]

2.

Signature.

[Name and address of the owner, dealer or manufacturer. Register Number of Estate, or Dealer or Manufacturer]

[Substituted by G.S.R. 620, dated 15th July, 1958]

.

Place.....

Date.....

[Form C]

[Substituted. by S.R.O. 549, dated 14th February, 1957.]

[Sec Rule 39 (1)]

Reg. No.....Licence No.....Date.....

Mr./Messrs.....of.....is/are hereby authorised to buy, or otherwise acquire rubber [(including imported natural rubber)]

[Inserted by Notification No. G.S.R. 897(E), dated 12.12.2001 (w.e.f. 1.8.1955)]

from any registered estate or any licensed dealer and sell rubber to another licensed dealer or licensed manufacturer subject to the following conditions:

This licence shall remain in force from.....to.....both days inclusive, and is not transferable.

Conditions

(1)

No rubber shall be purchased from any person other than a licensed dealer or a registered estate and no rubber shall be sold to any person other than a licensed dealer or a licensed manufacturer.

(2)

The licensee shall not purchase or sell rubber on behalf of any other person unless he is an authorised agent of such person, and such authorisation has been registered in the books of the Rubber Board.

(3)

The licensee shall issue a purchase bill to the seller every time a purchase is made containing the following particulars:-

(a)

Licence number and address of the Licensee.

(b)

Licence number or registration number and address of the seller.

(c)

Date of purchase.

(d)

Grade of rubber.

(e)

Weight in lbs.

(f)

Rate for 100 lbs.

(g)

Amount.

Kottayam, Kerala State,

Date.....

For the Rubber Board,

Secretary.]

FORM D

[See Rule 40]

The Rubber Board

Application to purchase or otherwise acquire rubber

Application for Special Licence

Name and address of Applicant.....

[Year and Requirement]

[Substituted 'Year' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[Grade]

[Substituted 'Year' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[1st Year]

[Substituted 'Year' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[2nd Year]

[Substituted 'Year' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[3rd Year]

[Substituted 'Year' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[4th Year]

[Substituted 'Year' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[5th Year]

[Substituted 'Year' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

Total tonnage

1.[Quantity of rubber applied for and the period for which it is required (show dry rubber weight in the case of latex)]

[Substituted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955)]

2.Estimated Quantity of rubber
required for the Year

3.Purpose for which the rubber is
required

4.[Actual consumption during the previous year]

[Substituted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[Grade]

[Substituted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[Tonnes]

[Substituted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]
lbs.

5.[Stock of rubber held on date of
application or purchased and in transit or awaiting delivery.]

[Substituted by by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

Signature of applicant.

Date.....

[Form 'D1']

[Inserted by S.R.O. 2824, dated 30th August, 1957.]

[See Rule 40A]

The Rubber Board

Application for the issue of a special licence to sell rubber to licensed manufacturers in emergencies

1.

(a)

Name and address of the applicant.

(b)

Register No. and Date of the Licence in Form E.

2.

(a)

Name and address of the manufacturer to whom rubber is proposed to be sold.

(b)

Reg. No. and date of the licence in Form 'E' issued to the manufacturer.

3. Stock of rubber held on date of application including that purchased and in transit or awaiting delivery:-

(a) By the applicant. Grade Tons Pounds

(b) By the purchaser. Grade Tons Pounds

?..

?..

4.

Quantity proposed to be sold:-

Grade

Tons

lbs.

?..

?

?

5.

Price at which each grade of rubber proposed to be sold was purchased.

Grade

Rate for 100 lbs.

?

?

?

6.

Price at which each such grade of rubber is proposed to be sold.

Grade

Rate for 100 lbs.

?

?

?

7.

Reason for difference, if any, between the two prices noted in columns 5 and 6.

8.

Reason for the transaction.

Declaration of the Applicant.

I declare that the statements made above are true to the best of my knowledge and belief.

Date.....

Signature of the applicant.

Declaration of the Purchaser

I declare that the statements made above, so far as they relate to me, are true to the best of my knowledge and belief.

Date.....

Signature of the Purchaser.]

[Form E]

[Substituted by S.R.O. 549, dated 14th February, 1957.]

[See Rule 40]

The Rubber Board

Licence to acquire rubber

Licence No.....

Mr./Messrs.....is/are hereby authorised to purchase or otherwise acquire the undermentioned quantities of rubber [from estates or licensed dealers or processors in India (including imported natural rubber)]

[Substituted '(including imported natural rubber) from registered estates or licensed dealers in India' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955)]

subject to the conditions specified below:

[Grade Year]

[Inserted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

Tons

lbs.

?

?

?

?

?

?.

This licence is valid from.....to.....both days inclusive [and is not transferable]

[Inserted by G.S.R. 620, dated 15th July, 1958.]

.

Conditions

(1)

No rubber shall be purchased from any person other than a licensed dealer or a registered estate, or authorised agent of such dealer or registered estate holding an authorisation registered in the books of the Board.

(2)

If any rubber is purchased through the licensee's authorised agent, the authorisation of such agent should have been registered in the books of the Rubber Board.

(3)

The licensee shall issue a purchase bill to the seller or obtain a sales bill from the seller every time a purchase is made containing the following particulars:-

(a)

Licence number and address of Licensee.

(b)

Licence number or registration number and address of the seller.

(c)

Date of purchase.

(d)

Grade of rubber.

(e)

Weight in lbs.

(f)

Rate per 100 lbs.

(g)

Amount.

Kottaym, Kerala State,

Date.....

For the Rubber Board,

..... Secretary.]

[Form 'E1']

[Inserted by S.R.O. 2824, dated 30th August, 1957.]

[See Rule 40A]

The Rubber Board

Reg. No.....

Licence No.....

Date.....

Mr. / Messrs.....holding Purchase Licence No.....dated.....in Form E valid up to and including.....is/are hereby authorised to sell the undermentioned quantities of rubber at one sale to Mr./Messrs.....holding Purchase Licence No.....dated.....in Form E valid up to and including due to an emergency subject to the condition specified below.

Grade

Tons

Pounds

?.

?.

?.

?.

?.

?.

The licence is valid for a period of fifteen days only from the date of issue and is not transferable.

Condition

As soon as the sale is completed but not later than one week from the date of expiry of the licence, the licensee shall return the licence to the Board with the form appended hereto duly filled in.

Kottayam, Kerala State,

Date

For the Rubber Board,

Secretary.

Appendix

1.

Date of sale.

2.

Date of delivery to the purchaser.

3.

Particulars of rubber sold:-

Grade

Tons

Pounds

Rate per 100 lbs.

Amount Rs.np.

....

....

....

....

....

....

....

....

Total

....

....

....

....

Declaration

I declare that the statements made above are true to the best of my knowledge and belief.

Date.....

Signature of the applicant.]

[Form F]

[Inserted by S.R.O. 2824, dated 30th August, 1957.]

[See Rule 41(1)]

The Rubber Board

Application for licence for new planting/re-planting rubber.

1.

Full name and address of applicant.

2.

Area intended to be new planted/re-planted.*

3.

District, Taluk, Village or Pakuthy in which the land is situated.

4.

If for re-planting, Registration No. of the estate.

5.

Number and date of the Money Order Receipt for the licence fee (Re.I) remitted.

Signature of the applicant.

Station.....

Date.....

*Strike out the word not applicable.]

[Form G]

[Inserted by S.R.O. 2824, dated 30th August, 1957.]

[See Rule 41 (2)]

The Rubber Board

New Planting Licence

Licence No....

Date of issue.....

Name and address of applicant.

Registration No. of Estate.

Registered area of estate.....acres.

Description of area where rubber is permitted to be planted.....

Permission is granted to plant acres. This licence is valid for a period up to.....

A return in the form attached should be submitted so as to reach the Secretary, Rubber Board, not later than the 31st December, 19.

For the Rubber Board,

Secretary.

Kottayam,

Kerala State,

South India.

Return of New planting

Registration No.....

New planting Licence No.....Dated.....

The area planted:-

Planting material

Acres

(i)

Unselected (ordinary) seedlings

.....

(ii)

Clonal seedlings

.....

(iii)

Budgrafts

.....

(Strike out the words not applicable).

Notes: - 1.In the case of unselected ordinary seedlings state the area that would be budded later.

2.

If no area has been planted that fact should be stated.

Date.....

Signature.

To

The Secretary, Rubber Board,

Kottayam, Kerala State.]

Form H

[See Rule 43 (2)]

[(The return for each month should be sent so as to reach the Secretary, Rubber Board, Kottayam, on or before the 15th of the succeeding month)]

[Substituted by G.S.R. 620, dated 15th July, 1958.]

].

The Rubber Board

Serial No.....

Name of the State Dealer

Register No.

Full address.

I declare that the following is a true account in respect of [.....]

[For dealer only]

my [business]

[Here enter the name of the estate.]

for the month of.....

Groups and Grades

I

II

III

IV

Vs

Closing stocks of all grades of Rubber as shown

in the last return

Stocks acquired or produced during the month

Stocks disposed of during the month

Balance of stocks on hand at the end of month

Stock in transit for which receipt notes have

not been received

lbs.

lbs.

lbs.

lbs.

lbs.

1

2

3

4

5

6

Rma IXRma 1

Group 1

Rma 2Rma 3

Group 2

[***]

[Omitted 'Cutting No.1' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

Rma 4

Rma 5[ISS]

[Substituted 'Cuttings No. 2' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[Off sheet]

[Inserted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

Group3

Precoagulated Crepe.

Pale Latex Crepe IX

Pale Latex Crepe 1.Pale Latex Crepe 2.

Group 4

Pale Latex Crepe 3.[***]

[Omitted 'FAQ' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

Estate Brown

Crepe Super IX

Estate Brown

Crepe IX

Estate Brown\Crepe 2X

Group 5

[***]

[Omitted 'Smoked Blanket' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[***]

[Omitted 'Remilled Crepe 2' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

Estate Brown Crepe 3X

[

*)

[Omitted 'Remilled Crepe 3' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

[

*)

[Omitted 'Remilled Crepe 4' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

Group 6

Flat Bark Crepe\Earth Scrap Crepe

Group 7

Subs. by G.S.R.620, dated 15th July, 1958.[Field Coagulam (Dry Weight)]

[Substituted 'Scraps (Dry Weight)' by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

Sole Crepe

Preserved Latex (Dry Rubber Content) (State percentage of concentration)(i) Normal (ii) Centrifuged Concentrate (iii)

Creamed Concentrate.

Total

Date

signature of the owner of the estate Dealer

[Form I]

[Substituted by G.S.R. 620, dated 15th July, 1958.]

[See Rule 41 (2)]

The Rubber Board

Replanting Licence

Licence No.....

Date of issue.....

Name and address of applicant.....

Registration No. of the Estate.....

Registered area of the Estate.....acres.

Description of area where rubber is permitted to be replanted.

Permission is granted to replant.....acres.

This licence is valid for a period up to.....

The return in the form attached should be submitted to the Secretary, Rubber, Board, not later than 31st December, 20.

For the Rubber Board.

Kottayam,

Kerala State,

South India.

Secretary.

Return of Replanting

Replanting Licence No.....

Registration No. of Estate.....

Area replanted.....

Planting material

Acres

(a) Unselected (ordinary) seedlings

....

(b) Clonal seedlings

....

(c) Budgrafts.

....

(Strike out the words not applicable).

Note: - I. In the case of unselected (ordinary) seedlings, state the area that would be budded later.

2.

If no area has been replanted, that fact should be stated.

Date.....

Signature.....

To

The Secretary,

Rubber Board,

Kottayam, Kerala State.]

Form J

[***]

[Omitted by S.R.O. 549, dated 14th February, 1957]

[Form K]

[Substituted, by G.S.R. 620, dated 15th July, 1958.]

(See Rule 43)

(The return for each month should be sent so as to reach the Secretary, Rubber Board, Kottayam, on or before the 20th of the succeeding month.)

The Rubber Board

Register No.....

Name of Manufacturer.....

Full address.....

I hereby declare that the following is a true account in respect of for the month of.....

(State here the name of the firm)

(1)

Position of Natural Rubber (Indigenous and Imported)

Grades

Closing Stock of all grades of rubber as shown

grades in the last return (Indigenous and imported)

Stock acquired during the month (Indigenous

and imported) (a)(b)(c) Indi Im Total gen-por-ous. ted.

Stock consumed in manufacture during the

month (Indigenous and imported)

Stock otherwise disposed of during the month

(Indigenous and imported)

Balance of stock on hand at the end of the

month (Indigenous and imported)

Stocks in transit awaiting delivery (Indigenous and imported)

lbs.

lbs.

lbs.

lbs.

lbs.

lbs.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Rma IX Rma. 1 Rma. 2 Rma. 3

Group 1

Cutting No.1 Rma. 4 Rma. 5

Group 2

Cutting No.2 Precoagulated Crepe.

Group 3

Pale Latex Crepe IX. Pole Latex Crepe 1.

Group 4

Pale Latex Crepe 2 Pale Latex Crepe 3 FAQ Estate

Brown Crepe Super IX Estate Brown Crepe IX

Estate Brown Crepe 2X Smoked Blanket Remilled Crepe

2

Group 5

Estate Brown Crepe 3X Remilled crep 3 Remilled

Group 6

Crepre 4 Flat Bark (Earth Scrap Crepe) Scraps (Dry

weight) Sole Crepe

Group 7

Latex (Dry' rubber content) (State percentage of concentration)

(i) Normal. (ii) Centrifuged concentrate (iii) Creamed concentrate.

Total.....

Signature of the Manager/Proprietor of the Factory.

(Name of the person signing should be given in Block Letters).

I

Position of synthetic Rubber

Type of synthetic rubber

Closing stocks of all grades as

shown in the last return

Quantity imported or produced or

acquired during the month

Quantity consumed during the month

Quantity disposed of, if any, during the month

Balance of stocks on hand at the end

of the month

Quantity in transit at the end of
the month

lbs

lbs

lbs

lbs

lbs

lbs

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Total

II

Position of Reclaimed Rubber

Type of synthetic rubber

Closing stocks of all grades as
shown in the last return

Quantity imported or produced or
acquired during the month

Quantity consumed during the month

Quantity disposed of, if any, during
the month

Balance of stocks on hand at the end
of the month

Quantity in transit at the end of
the month

lbs

lbs

lbs

lbs

lbs

lbs

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Total

Place.....

Date.....

Signature of the Manager / Proprietor of the Factory.

The name of the person signing should be given in Block Letters.))

[FORM L]

[Inserted by S.R.O. 549, dated 14th February, 1957.]

(See Rule 43)

[(The return for each month should be sent so as to reach the Secretary, Rubber Board, Kottayam, on or before the 15th of the succeeding month.)]

[Substituted, by G.S.R. 620, dated 15th July, 1958.]

]

The Rubber Board

Name of Estate / Dealer / Manufacturer.....

Reg. No. / Licence No.....

Details of raw rubber acquired and / or disposed of in the month of.....as per cols. II and III of Form H in the case of estates and dealers, and col. 2 of Form K in the case of manufacturer.

(To be filled up by Dealers and manufacturers)

(To be filled up by dealers and Estates)

QUANTITY ACQUIRED

QUANTITY DISPOSED

Name and Reg. No. of Estate / Dealer

Quantity in lbs. acquired from each estate or dealer

Name and Reg. No. of Dealer/ Manufacturer

Quantity in lbs. disposed of to each dealer or manufacturer

Total

Total

Place.....

Date.....

owner of the Estate

Signature of the dealer.....

Manufacturers.]

[**]

[Omitted by Notification No. G.S.R. 1513(E), dated 13.12.2017 (w.e.f. 1.8.1955).]

The Second Schedule

(See Rule 3(2))

Provisions Relating to Elections

1.

Constituencies. - The undermentioned constituencies shall be formed and they shall be entitled to elect the number of members noted against each to the Board:

Seats

Madras State?Large growers' constituency

.....

1

Substituted, by G.S.R. 226, dated 7th April, 1958.[Kerala State]?Large growers' constituency

.....

3

The large growers constituency in a State shall consist of every large grower registered in that State as provided under Sec. 10 of the Act.

2.

Voters. - The persons in whose names the estates are registered shall be the voters:

Provided where an estate is registered in the names of more than one person, the registered owners shall nominate one

among them to vote on their behalf:

Provided also where an estate is registered in the name of a Company, the Company shall nominate its Chairman, Managing Director, Partner or other shareholder to vote on behalf of the Company.

3.

Electoral Rolls. - The Secretary shall prepare electoral rolls for each constituency every two years on the basis of voters therein as on the 1st August of the preceding year and shall cause them to be published in such manner as the Chairman may prescribe at the Office of the Rubber Board and at such other places as the Chairman may decide.

Objections, if any, from the electors must be submitted to the Returning Officer within 10 days of the publication of the electoral roll.

If any dispute arises whether any person is entitled to be an elector in a constituency the Secretary shall report the matter to the Chairman whose decision therein shall be final.

No election to the Board conducted under these rules shall be invalid by reason of any vacancy among the number of persons entitled to vote at such election.

3A.

[Revision and amendment of electoral rolls.]

[Inserted by G.S.R. 682, dated 29th July, 1958.]

-(1) If by reason of the reorganisation of States or any other sufficient cause, it is necessary to revise or amend any electoral roll prepared under rule 3, the Secretary may revise or amend such roll;

(2)

The provisions of rule 3 shall, so far as may be, apply in relation to the revision or amendment of an electoral roll under sub-rule (1) as they apply to the preparation of an electoral roll under rule 3.]

4.

Franchise. - Every voter in each constituency shall have one vote for each seat for which election is to be held irrespective of the area of his estate or estates.

5.

Returning Officer. - The Chairman of the Board shall be the Returning Officer for the election of representatives of rubber growers on the Board and shall, subject to the provisions of the Act and its Rules, do all things necessary for the conduct of elections.

6.

Notification of vacancies. - If any vacancy occurs or is about to occur by efflux of time or by any other reason the Returning Officer shall issue a notification stating the nature of the election, the last date for presentation of nomination papers, and the time and place for scrutiny of the nominations.

Each elector shall be at liberty to nominate a person on his electoral roll to fill the vacancy. Every nomination shall be made by an elector in writing and shall be seconded in writing by another and every such nomination shall be accompanied by the consent in writing of the nominee agreeing to serve on the Board, if elected, and must reach the Returning Officer not later than the notified date which shall be not less than 10 days after the publication of the notification of the vacancies.

No candidate for election to the Board shall stand for election at the same time for more than one constituency.

7.

Scrutiny of nomination papers. - All nomination papers shall be scrutinised by the Returning Officer on the date and hour and at the place appointed and notified, and the names of the candidates whose nomination papers have been declared valid shall be published on the same day by affixing a copy thereof on the Notice Board at the office of the Returning Officer.

Appeals, if any, from candidates whose nominations have not been held valid must be filed within seven days of the declaration of valid nominations and these shall be placed before the Returning Officer whose decision shall be final.

8.

Nomination not exceeding the vacancies. - If the number of valid nominations does not exceed the number of vacancies to be filled, the Returning Officer shall declare such nominees to be elected.

9.

Procedure for elections. - If the number of valid nominations exceeds the number of vacancies to be filled, the Returning Officer shall forward to each elector through the post (i) the numbered declaration paper (to declare that the

voter is a member of the constituency concerned and has signed no other voting paper at that election for that constituency), (ii) a voting paper on which the names of the candidates duly nominated shall be arranged in alphabetical order and which shall bear on it directions to the voter, the initials of the Returning Officer and the date of posting, (iii) a voting paper cover and an envelope addressed to the Returning Officer, and (iv) the letter of intimation stating the number of vacancies, the date and hours fixed for the poll and the date and hour fixed for the scrutiny and counting of votes. The papers shall be forwarded to the address entered against the name of the elector in the electoral roll or, if the elector has since the preparation of the roll changed his address and intimated the fact in writing to the Returning Officer not later than 14 days before the date fixed for the despatch of the voting papers, to the address so given.

The date fixed for the poll shall not be less than 10 days from the date of the posting of the voting papers.

The elector shall, after filling up the declaration paper and the voting paper in accordance with the directions given in the letter of intimation, enclose the voting paper in the voting paper cover and stick it and enclose this cover and the declaration paper in the envelope addressed to the Returning Officer and send the envelope by registered post so as to reach the Returning Officer not later than the date and the latest hour fixed for the poll, or, at his option, either in person or by an agent, deposit the envelope addressed to the Returning Officer in the ballot box provided at the office of the Returning Officer for the purpose on the date and during the hours fixed for the poll.

If an elector is incapacitated from blindness or other physical cause from voting in the manner prescribed it shall be competent for him to record his vote by the hand of any of the officers or other persons empowered to attest his declaration; and such officer or other person shall, on the declaration paper certify the incapacity and attest the fact of his having been requested by the elector to mark the voting paper for him and of its having been so marked by him in the presence of the elector.

The following officers are empowered to attest votes of incapacitated electors:-

1.

Magistrates (as defined in the Code of Criminal Procedure),

2.

District Registrars,

3.

Sub-Registrars,

4.

Rubber Production Commissioner.

An elector who has not received his voting and other connected papers sent by post or whose papers, before their despatch back to the Returning Officer, have been inadvertently spoilt in such manner that they cannot be conveniently used, or who has lost his papers, may on his transmitting to the Returning Officer a declaration to that effect signed by himself require the Returning Officer to send him new papers in place of those not received, spoilt or lost; and if the papers have been spoilt the spoilt papers shall be returned to the Returning Officer who shall cancel them on receipt. In every case where new papers are issued, a mark shall be placed against the number of the elector's name in the register (electoral roll) to denote that new papers have been issued in place of those not received, spoilt or lost.

The Returning Officer shall deposit all the covers containing declarations and voting papers received by him in a safe in his office until the time fixed for the scrutiny and counting of the votes.

The Returning Officer shall appoint two officers of the Board to act with him in the scrutiny and counting of the votes. Any candidate or his duly appointed agent may be present at the time of such scrutiny and counting of votes.

On the day and the hour appointed for the scrutiny and counting of votes, the envelopes received from the electors except those which have not either been sent by registered post so as to reach the Returning Officer not later than the day and the latest hour fixed for the poll or deposited in the ballot box provided for the purpose on the day and during the hours fixed for the poll, shall be arranged and counted. They shall then be opened and the declaration papers and the voting paper covers examined. The voting paper covers other than those rejected hereunder shall next be opened and the voting papers taken out and mixed together. The voting papers shall then be scrutinised and the valid votes counted.

A voting paper cover shall be rejected if:

(i)

the envelope contains no declaration paper outside the voting paper cover, or

(ii)

the declaration paper is not the one sent by the Returning Officer, or

(iii)

the declaration or attestation is not in accordance with the rules, or

(iv)

the voting paper is placed outside the voting paper cover, or

(v)

more than one declaration paper or cover containing voting paper have been enclosed in one and the same envelope.

In the case of rejection, the word 'rejected' shall be endorsed on the voting paper cover or the declaration paper as the case may be.

A voting paper shall be invalid if:-

(i)

it does not bear the Returning Officer's initials, or

(ii)

more votes than the number of persons to be elected are recorded on it, or

(iii)

no vote is recorded thereon, or

(iv)

a voter signs his name or writes any word or makes any mark on it, by which it becomes recognisable, or

(v)

it is void for uncertainty.

On every paper so rejected, the Returning Officer shall endorse the word 'invalid' and such papers shall be kept in a separate parcel.

10.

Only one vote to be recorded for each candidate. - Only one vote shall be recorded for any one candidate.

11.

Decision regarding validity. - The decision of the Returning Officer shall be final as to the validity of any votes recorded.

12.

Declaration of results. - After the scrutiny is completed and the votes have been counted a statement shall be prepared showing:-

(a)

the names of the candidates for whom valid votes have been given;

(b)

the total number of votes given;

(c)

the number of valid votes given for each candidate; and

(d)

the name of the candidate elected.

Candidates who have received the largest number of votes shall be deemed to be elected up to the number of vacancies available provided that in the event of two or more candidates obtaining equal number of votes the final election shall be made by drawing lots in such manner as the Returning Officer may determine.

The Returning Officer shall communicate the name of the candidate declared elected along with the above statement to the Central Government. The results of all elections shall be published in the Gazette of India and shall have effect from the date fixed in such notification.

13.

Preservation of voting papers. - The voting papers, together with the declaration papers, if any, of all elections shall be preserved in the Board's office for 6 months after the results are duly notified.

Declaration paper

Serial No.....

Elector's Name, and number in the Electoral roll.....

Elector's declaration

I (name in full and designation).....declare that I am an elector, for the election of one member by the (name of the

constituency).....to the Rubber Board and have signed no other voting paper at this election.

Signature.....

Date.....

Station.....

Address:

Face of Voting paper cover

Voting paper

Face of Envelope

Election to the Rubber Board by.....

By Registered Post.

To

The Returning Officer,

(Address)

Voting paper

Election.....

Face of Voting paper

Names of candidates

Mark showing the voter's choice

(Please see instructions on the back)

Back of Voting Paper

(1)

The number of vacancies to be filled in is.....

(2)

Place a cross mark thus X against the name of the candidate for whom you wish to vote.

(3)

A voting paper will be invalid if.

(a)

it does not bear the Returning Officer's initials, or

(b)

more votes than the number of persons to be elected are recorded on it, or

(c)

no vote is recorded thereon, or

(d)

a voter signs his name or writes any word or makes any mark on it, by which it becomes recognisable, or

(e)

it is void for uncertainty.

Letter of Information

Sir,

1.

The persons whose names are printed on the voting paper sent herewith have been nominated as candidates for election to the Rubber Board. Should you desire to vote at this election, I have to request that you will:-

(n)

fill up and sign the declaration paper;

(b)

mark your vote, in the column provided for the purpose in the voting paper, as directed on the voting paper;

(c)

enclose the voting paper in the smaller cover and stick it; and

(d)

put the smaller cover and the declaration paper in the envelope addressed to me and return the same to me either by registered post so as to reach me not later than P.M. on.....theof 19 or deposit or cause to be deposited the envelope addressed to me in the ballot box provided for the purpose.....between.....A.M. and.....P.M. and on

the same day.

2.

Voting papers will be rejected :-

(1)

if the envelope enclosing the voting paper cover and the declaration paper is not either (i) sent by registered post and received not later than the hour fixed for the closing of the poll or (ii) deposited in the ballot box on the date and between the hours fixed;

(2)

if the outer envelope contains no declaration paper outside the smaller cover;

(3)

if the voting paper is not enclosed in the smaller cover;

(4)

if more than one declaration paper or over containing voting paper have been enclosed in one and the same envelope;

(5)

if the declaration or attestation is not in order;

(6)

if the declaration paper is not the one sent by the Returning Officer to the voter;

(7)

if the voting paper is invalid.

3.

A voting paper will be invalid-

(1)

which does not bear the Returning Officer's initials; or

(2)

on which a voter signs his name or writes any word or makes any mark by which it becomes recognisable; or

(3)

on which no vote is recorded; or

(4)

on which more votes are recorded than the number of vacancies to be filled.

4.

Declaration papers need not be attested, but in case of a voter who is incapacitated from blindness or other physical cause from voting in the manner prescribed, it shall be competent for him to record his vote by the hand of any of the following persons:-

Magistrates (as defined in the Code of Criminal Procedure); District Registrars; Sub-Registrars and Rubber Production Commissioner.

Such persons shall, on the declaration paper, certify the incapacity and attest the fact of his having been requested by the voter, mark the voting paper for him and of its having been so marked by him in the presence of the voter.

If a voter inadvertently spoils a voting paper, he can return it to the Returning Officer who will, if satisfied of such inadvertence, issue to him another paper.

The scrutiny and counting of votes will begin on.....

Returning Officer.

Station.....

Dated.....

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Translation